

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 21-026

**Amendments to Title 2, Chapter 8 of the Chickasaw Nation Code
(Chickasaw Nation Code Sales and Distribution)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature performs maintenance, updating and distributing the Chickasaw Nation Code as provided in Title 2 of the Code, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend the policies regarding the Chickasaw Nation Code.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 8 of the Chickasaw Nation Code (additions are shown in red, deletions are stricken through).

"SECTION 2-811

UPDATING AND DISTRIBUTION.

A. By contract or by the Chickasaw Nation's personnel, a change; or supplement to the Code, ~~adopted by this Act,~~ shall be prepared and printed whenever authorized or directed by the Legislature. The Code and updates shall be maintained both in printed form and on CD. A change to the Code shall include all substantive permanent ~~and general~~ parts of enactments passed by the Legislature or adopted by initiative and referendum, if any, during the period covered by the change and all changes made thereby in the Code. The printed pages of a change shall be so numbered that they will fit properly into the Code and where necessary, replace pages which have become obsolete or partially obsolete, and new pages shall be so prepared that, when they have been inserted, the Code will be kept up to date. Updates will require the preparation of a new CD containing the entire updated Code. The words "as amended" and the date, shall appear at the top of the first page of each Title. ~~may be added to the Title after the year.~~

B. After every change has been prepared and printed, a number of copies of the change equal to the number of copies on order, or the number of copies of the Code still in existence, shall be ~~deposited in the office of the Governor~~ distributed to the holders of the Code. Except as otherwise provided in this Section, the Code and updates shall be distributed in both printed form and on CD. ~~The Governor, or his designee, shall notify each holder of a copy of the original Code about the availability of the change or supplement.~~ All copies distributed to the

Executive Department shall be delivered to the office of the Governor. All copies distributed to the Judicial Department shall be delivered to the office of the Supreme Court Clerk of Court.

C. Members of the Chickasaw Bar Association shall receive the Code and updates on CD only. All copies to be distributed to the members of the Chickasaw Bar Association shall be delivered to the Judicial Department.

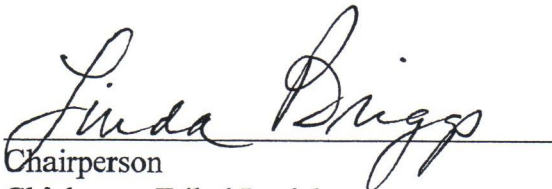
D. The Code shall also be maintained and updated on the internet site in PDF format for the use of the general public.

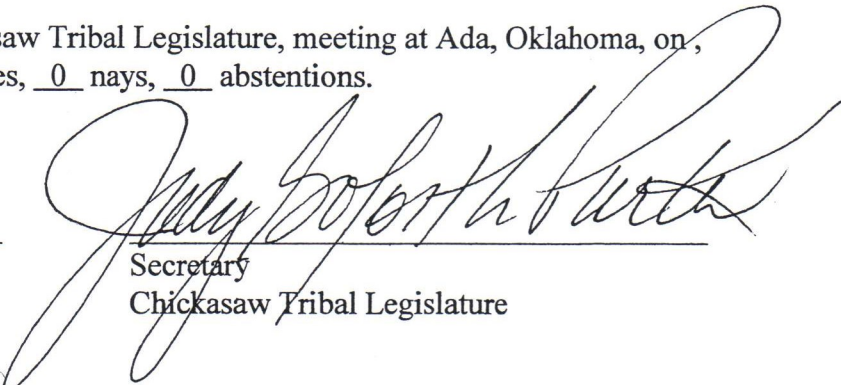
SECTION 2-812

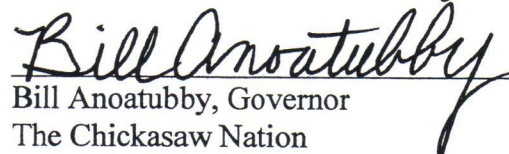
SALES AND REVENUES.

The Governor, is hereby authorized and directed to sell copies of the Code on CD to the public at a price determined from time to time by the Legislature. ~~The Governor shall include a line item in his annual budget to cover the~~ expense of printing, updating and distributing of the Code shall be borne by the Legislature through the annual budget. Revenues from the sale of copies of the Code shall be handed over to the Comptroller to be deposited to the General Fund and credited to the budget of the Legislature of the Chickasaw Nation. Such credit shall be computed, quarterly, on the basis of the fiscal year."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on, September 17, 2004, by a vote of 11 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 17 2004

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-026
Amendments to Title 2, Chapter 8 of the Chickasaw Nation Code
(Chickasaw Nation Code Sales and Distribution)

Explanation: This resolution amends Title 2, Chapter 8 pertaining to the maintenance, updating and distributing the Chickasaw Nation Code.

Requested By: Linda Briggs, Chairperson

Presented By: Tim Colbert, Chairman
Court Development Committee